

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an appeal in terms of
Section 331(10 of the Code of Criminal
Procedure Act No. 15 of 1979 read
with Article 138 (1) of the Constitution
of the Democratic Socialist Republic
of Sri Lanka.**

Democratic Socialist Republic of Sri
Lanka

Complainant

Court of Appeal No.
CA/HCC/71/2023

Vs.

High Court of Colombo
HC 425/2018

Alagiyawannage Rasika Niroshan Mendis

Accused

AND NOW BETWEEN

Alagiyawannage Rasika Niroshan Mendis

Accused- Appellant

Vs.

Hon. Attorney General,
Attorney General's Department,
Colombo 12

Respondent – Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Neranzan Jayasinghe with Randunu Heellage and Pravindika
 Kularatne for the Accused-Appellant

 Yuhan Abeywickrama, D.S.G. for the Respondent

Argued on: 09.06.2026

Decided on: 24.06.2026

Judgment

Amal Ranaraja, J.,

1. The accused-appellant (hereinafter referred to as ‘Appellant’) has been indicted in the High Court of *Colombo* in Case No. HC 425/18. The charges in the indictment are as follows;

01. On or around 15th of December, 2016, within the jurisdiction of this Court, in *Technical College Junction*, you have committed an offence under Section 54A (d) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No.13 of 1984, by having in your possession, a quantity of Diacetyl Morphine, or heroin, exceeding the quantity specified in Column II of Part III, particularly, 3.56 grams and of the Third Schedule to the said Ordinance, in a manner other than as permitted by the provisions of Chapter V of the Ordinance, and therefore, is punishable by the penalty specified in the corresponding column iii of that part.

02. In the same time, place and course of action of the above first charge, you have committed an offence under Section 54A (b) of the Poisons, Opium and Dangerous Drugs (Amendment) Ordinance No.13 of 1984, by trafficking a quantity of Diacetyl Morphine, or heroin, exceeding the quantity specified in Column II of Part III, particularly, 3.56 grams and of the Third Schedule to the said Ordinance, in a manner other than as permitted by the provisions of Chapter V of the Ordinance, or in a manner other than as permitted by a license of the Director and therefore, is punishable by the penalty specified in the corresponding column iii of that part.

2. At the conclusion of the trial, the appellant has been found guilty of the charges and sentenced to two terms of life imprisonment. The appellant aggrieved by the conviction, disputed judgement, together with the sentencing order has preferred the instant appeal to this Court.

Case of the Prosecution

3. Police Inspector, *Janak de Silva* (PW01) had been assigned to the *Maradana* police station as the Officer in Charge of the Law Enforcement Unit at the relevant time. On the morning of December 15th, 2016, PW01 along with PW02, PW03, PW04, and other officers have set out on surveillance duty. At approximately 10.50 hours, PW01 has received information regarding a person named *Rasika Niroshan*, who was expected to traffic a narcotic substance near the Technical College in *Keselwatte, Colombo*.
4. PW01 has decided to conduct a raid and travelled to *Keselwatte* with the other officers. When the team arrived at *Keselwatte*, PW01, PW02, PW03 and PW04, have disembarked from the vehicle and positioned themselves as stated in the vicinity of the Technical College building.

5. At approximately, 12.05 hours, a three-wheel scooter has arrived from the direction of *Maradana* and stopped about seventy five metres from the location of PW01 and PW03. PW01 has identified the individual named in the information by his attire and along with PW02, PW03 and PW04 proceeded to detain him.
6. Upon searching the detained individual, PW01 has discovered a parcel tucked between the person's body and the waistband of his trouser. The parcel has contained heroin. Subsequently, the individual, identified as the appellant has been arrested.
7. The appellant and the retrieved parcel, which had been temporarily sealed, have been then taken to the Police Narcotics Bureau. The heroin has been weighed and the parcel sealed. Following this the team of officers, along with the appellant, have travelled to the *Maradana* police station where the appellant and the sealed parcel have been handed over to the reserve.
8. The sealed parcel, together with its contents, has then been purportedly forwarded to the government analyst for examination. After analysing its contents, the analyst has prepared a report. This report has been subsequently produced as evidence marked *ex 11*.

Case of the Appellant

9. The appellant has maintained that he has been falsely implicated due to a grudge held by PW01 against him. When the matter was taken up for argument, the learned Counsel for the appellant urged the following grounds of appeal.
 - i. Evidence of the prosecution witnesses failed the test of credibility

- ii. The dock statement of the accused appellant has been rejected on unreasonable grounds

- iii. The prosecution has failed to prove the inward journey of the production.

10. In a narcotic trafficking case, the prosecution bears the burden of proving a defendant's guilt beyond a reasonable doubt. To secure a conviction, the prosecution must establish several core elements.

A. Identity and possession

- i. The prosecution must prove that the accused is the person who committed the offence.

- ii. The prosecution must show that the accused had a command, arrangement, capacity or control over the dangerous drug.

"For the purposes of this Ordinance, anything in the order, disposition, power or control of a person is deemed to be in his possession."

(Vide Section 2(2) of the Ordinance)

- iii. The accused must be shown to have known that the substance was present and also knew of its illegal nature, i.e., a dangerous drug.

B. Nature and quantity of the substance

- i. The prosecution must prove the substance is a dangerous drug, typically through a certificate of an analyst confirming its identification.

- ii. The quantity is critical in distinguishing trafficking from personal possession. Large quantities often trigger presumptions of trafficking.
- iii. The prosecution must prove an unbroken chain of custody for the seized drugs, ensuring the substance tested in the lab is the same one seized from the accused.

C. Intent to traffic

- i. The prosecution must demonstrate that the possession was for the purpose of selling, distributing transporting or delivery of the drug, etc. (vide the definition of trafficking in Section 54 of the Poisons, Opium and Dangerous Drugs Ordinance as amended by Act No. 13 of 1984)
- ii. Intent is often inferred from circumstantial evidence including,
 - a. Packaging – Drugs individually wrapped or divided into small baggies.
 - b. Equipment – Possession of scales, cutting agents or mixing equipment.
 - c. Cash – Large amounts of cash, particularly in small denominations.
 - d. Quantity – If the amount of drugs exceed what would typically be considered for personal use.

11. The learned counsel for the appellant has contended that PW01 was well acquainted with the appellant long before the incident detailed in the charges. However, that PW01's testimony directly contradicts this,

as PW01 has stated in his evidence in chief, that the appellant was not known to him until after being allegedly detained and questioned about his identity. This significant inconsistency in PW01's testimony, claiming prior knowledge in re-examination and then not divulging the same in the examination in chief raises serious doubts about the reliability of PW01's testimony and consequently also of his credibility as a witness.

12. PW01 has testified that he had previously arrested the appellant in between the years 2000 and 2002, when he was assigned to the *Maligawatte* Police Station. PW01 has only recognised the appellant as a suspect he had previously detained and arrested, at the point when the appellant was detained in connection with the current charges. He has not realised, upon receiving the information that triggered the raid, that the appellant was someone he had previously dealt with.

13. PW01 has clarified that he had seen and spoken to the appellant during his time at the *Maligawatte* Police Station and not thereafter. He has not testified to knowing the appellant "very well" as the appellant's Counsel has attempted to suggest. Therefore, the contention of the appellant that PW01 is not a credible witness must fail.

14. A dock statement is an unsworn statement made by an accused person from the dock where he cannot be cross-examined. Established by judicial precedent, the law requires trial judges to evaluate it as evidence capable of raising a reasonable doubt about the prosecution's case. Despite being unsworn and not subject to cross examination, a dock statement must be considered as evidence.

15. If a court believes the dock statement or if it raises a reasonable doubt about the prosecution's narrative, the accused is entitled to the benefit of the doubt and must be acquitted. A dock statement can be rejected if it is fundamentally contradicted by credible, proven prosecution

evidence. But the trial judge must not view the accused's failure to enter the witness box as an admission of guilt.

16. In the case of *The Queen v D. G. De S. Kularatne*, (1968) 71 NLR 529, it was held,

"...when an unsworn statement is made by the accused from the dock, the jurors must be informed that such statement must be looked upon as evidence, subject however to the infirmity that the accused had deliberately refrained from giving sworn testimony. But the jury must also be directed that (a) if they believe the unsworn statement, it must be acted upon, (b) if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed, and (c) that it should not be used against another accused."

17. Further in the case of *Kithsiri v Attorney General* (2014) 1 SLR 38, Sisira De Abrew, J, has held,

"Courts in evaluating evidence should not look at the evidence of the accused person with a scant eye. Defence witnesses are entitled to equal treatment with those of the prosecution and Courts ought to overcome their traditional instinctive disbelief in defence witnesses. Quite often they tell lies but so do the prosecution witnesses."

18. The appellant making a statement from the dock, has clearly explained that he has been falsely implicated in the specific instance. His stance has not been presented without basis as the appellant has also provided specific reasons to substantiate his position.

19. Furthermore, during the cross-examination, the appellant has actively presented and suggested his version of his case and specific points to the prosecution witnesses, directly challenging the prosecution's

narrative. However, in rejecting the appellant's evidence, the learned High Court Judge appears not to have fully engaged with or given due consideration, to these points raised by the appellant.

20. The disputed judgement notably has not provided clear, logical and convincing reasons for disregarding the appellant's evidence. There is no explicit conclusion by the learned High Court Judge that the appellant's evidence was irreconcilably contradicted by credible and proven evidence presented by the prosecution. Instead, it seems, the learned High Court Judge has proceeded to reject the appellant's evidence based merely on a presumption rather than a detailed analysis of facts.

“නමාව අත්අඩංගුවට ගැනීම සම්බන්ධයෙන් යම් හේතුවක් ඉදිරිපත් කිරීමට ඇති අවශ්‍යතාවය මත මෙවැනි විස්තරයක් සකස් කර ඉදිරිපත් කරන බවක් පෙනී යයි. වූදින විසින් ඉදිරිපත් කර ඇති විත්තිවාදිකය පැමිණිල්ලේ නඩුවේ සැකයක් ඇති කිරීමට ප්‍රමාණවත් නොවන බව තීරණය කරමි. ඒ අනුව පැමිණිල්ලේ නඩුව සාධාරණ සැකයකින් ඔබ්බට ඔප්පු වී ඇති බවට තීරණය කරමි.”

Vide Page 295 of the Case Brief

21. Regarding the secure custody of the sealed parcel until its dispatched to the government analyst, the prosecution has presented evidence from several witnesses, including PW07, PW08, PW09 and PW10.
22. PW07 has testified that he was on duty at the reserve on December 15th, 2016, when the sealed parcel was handed over at 15.10 hours. He has further stated that he handed the parcel to PW08 at 21.45 hours on the same day, upon PW08 assuming duties at the reserve. However, PW08's testimony introduces a discrepancy. He has stated that he received the parcel at 22.45 hours but notably on an undisclosed day.

23. Further inconsistencies arise from PW09, who has testified that he received the parcel from PW10 at 16.55 hours on December 20th, 2016. This conflicts with PW10's testimony that he handed over the parcel to PW09 at 13.55 hours on that same day, indicating a three hour difference in their reported transfer times.

24. The aforementioned discrepancies clearly indicate that the parcel concerned was at various times not held in secure custody and thus, susceptible to tampering.

25. Given these circumstances, the prosecution has failed to establish a secure and unbroken chain of custody for the parcel in question beyond a reasonable doubt.

26. In the case of *Nagalingam Chettiyar Kandasamy vs The Attorney General CA 190/2010*, decided on 15.03.2021, P. Kumararatnam J, has held that,

"In the case of this nature the prosecution not only need to prove the case beyond reasonable doubt but also ensure, with cogent evidence that the inward journey of the production has not been disturbed at the all-material point."

27. Further, in the case of *Honourable Attorney-General v. Jayakodi Aarachchige Anura Chaminda Appuhamy and Others SC TAB Appeal 05/2023*, decided on 09.06.2025, Kodagoda, PC. J, has held,

"It is necessary for this Court to observe that, in a case of this nature, where it is alleged that heroin was found in the possession of the Accused, as regards the said substance (commonly referred to as the 'productions'), what is necessary for the prosecution to establish are the following:

- (i) That the productions referred to in the prosecution's case were in fact recovered from the possession of the Accused.*
- (ii) That without unnecessary delay, the productions recovered from the suspects were properly sealed and given unique markings.*
- (iii) That without unnecessary delay, such sealed and marked productions were forwarded to the Government Analyst in the manner provided by law.*
- (iv) That what the Government Analyst received were the sealed and marked productions recovered from the suspects.*
- (v) That what the Government Analyst analyzed and reported on were the productions that were recovered from the suspects.*
- (vi) That the Government Analysts Report arises out of the quantitative and qualitative scientific analysis of the productions recovered from the possession of the Accused.*

What is necessary is for the prosecution to prove each of these requirements beyond reasonable doubt and not to the even higher degree of mathematical accuracy."

28. In those circumstances the prosecution has failed to establish beyond a reasonable doubt some of the matters that the prosecution is required

to establish beyond a reasonable doubt in cases of this nature as discussed above.

29. In those circumstances I am inclined to interfere with the conviction, the disputed judgement and the sentencing order.

30. I proceed to set aside the same and acquit the appellant of the charges.

31. I make no order regarding costs.

Appeal allowed

32. The Registrar of this Court is directed to send this Judgement to the High Court in *Colombo* for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal